

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jonathan Cioschi	Team: Team # 8	CCRB Case #: 200912953	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Wednesday, 08/19/2009 12:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 2/19/2011	Precinct: 79		
Date/Time CV Reported Wed, 08/19/2009 5:28 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Wed, 08/19/2009 5:28 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Erik Worobey	02712	932229	079 PCT
2. POM Joseph Kazlas	07769	941991	079 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Eric Healy	00957	936743	079 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Erik Worobey	Abuse: Sgt. Erik Worobey stopped § 87(2)(b)	A . Exonerated
B . SGT Erik Worobey	Abuse: Sgt. Erik Worobey stopped § 87(2)(b)	B . Exonerated
C . SGT Erik Worobey	Abuse: Sgt. Erik Worobey searched § 87(2)(b)	C . Unsubstantiated
D . SGT Erik Worobey	Abuse: Sgt. Erik Worobey searched § 87(2)(b)	D . Exonerated
E . SGT Erik Worobey	Off. Language: Sgt. Erik Worobey made remarks to § 87(2)(b) based upon race.	E . Unsubstantiated
F . POM Joseph Kazlas	Abuse: PO Joseph Kazlas refused to provide his name to § 87(2)(b)	F . Unsubstantiated

Case Summary

On August 19, 2009, § 87(2)(b) filed a complaint via the call processing system (encl. 4a-4b).

On August 19, 2009, at approximately 12:00 PM, Sgt. Erik Worobey, PO Joseph Kazlas, and PO Eric Healy of the 79th Precinct stopped § 87(2)(b) and § 87(2)(b) at the corner of § 87(2)(b) and § 87(2)(b) in Brooklyn. The following allegations resulted:

- **Allegation A – Abuse of Authority:** Sgt. Erik Worobey stopped § 87(2)(b)
- **Allegation B – Abuse of Authority:** Sgt. Erik Worobey stopped § 87(2)(b)
- **Allegation D – Abuse of Authority:** Sgt. Erik Worobey searched § 87(2)(b)
§ 87(2)(g)
- **Allegation C – Abuse of Authority:** Sgt. Erik Worobey searched § 87(2)(b)
- **Allegation E – Offensive Language:** Sgt. Erik Worobey made comments to § 87(2)(b) based upon race.
- **Allegation F – Abuse of Authority:** PO Joseph Kazlas refused to provide his name to § 87(2)(b)
§ 87(2)(g)

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) black male, § 87(2)(b), black hair, brown eyes. Employed by § 87(2)(b) in Richmond Virginia.

§ 87(2)(b) was interviewed at the CCRB on September 4, 2009 (encl. 6a-6f). On August 19, 2009, at approximately 12:00 PM, § 87(2)(b) exited his father's house at § 87(2)(b) alone to go to the corner store. He had only his 4 in. by 4 in. wallet in his back right pocket.

As soon as he exited his house, he saw a marked NYPD van containing three uniformed officers, identified through the investigation as PO Eric Healy, Sgt. Erik Worobey, and PO Joseph Kazlas, at the corner of § 87(2)(b) and § 87(2)(b). As § 87(2)(b) walked down § 87(2)(b) the NYPD van passed by him. Near the corner of § 87(2)(b) and § 87(2)(b) § 87(2)(b) passed his cousin § 87(2)(b) with whom he exchanged greetings. They neither shook hands nor exchanged anything nor stopped to talk.

Meanwhile, the NYPD van had turned around and parked at § 87(2)(b) and § 87(2)(b). The three officers exited the vehicle and approached § 87(2)(b) (**Allegation A**). As § 87(2)(b) was crossing the street, PO Healy and Sgt. Worobey approached him from behind. Neither said anything. PO Healy placed his right hand in § 87(2)(b)'s back right pocket and his left hand against § 87(2)(b)'s back (**Allegations B**). PO Healy guided § 87(2)(b) across the street to a corner of § 87(2)(b) and § 87(2)(b).

While on the corner, PO Healy searched § 87(2)(b)'s pockets, patted him down and asked him to flip his waistband; he complied (**Allegation C**). § 87(2)(b) asked PO Healy why he was being searched, and PO Healy mentioned that there had been numerous shootings in the area recently. § 87(2)(b) did not object. § 87(2)(b) initially noted that only some tissues were recovered through the search, but he later stated that his wallet and some lint were recovered. PO Healy asked § 87(2)(b) for his ID, which he provided.

Meanwhile, PO Kazlas and § 87(2)(b) were standing on an adjacent corner of the intersection. § 87(2)(b) recalled that PO Kazlas searched § 87(2)(b) the same way that PO Healy searched him (**Allegation D**). § 87(2)(b) did not think that PO Kazlas recovered anything from the search.

Sgt. Worobey took § 87(2)(b)'s Virginia Driver's License and ran a warrant check on him in their vehicle. Sgt. Worobey informed § 87(2)(b) that the warrant check revealed a Virginia state warrant for a § 87(2)(b) § 87(2)(b) § 87(2)(b). The officers handcuffed § 87(2)(b) and ordered him into the van, and he complied.

§ 87(2)(b) and § 87(2)(b) were transported to the 79th Precinct Stationhouse. At the stationhouse, § 87(2)(b) was searched again and placed in a holding cell with § 87(2)(b). After approximately forty-five minutes in the cell, § 87(2)(b) was permitted to leave. While § 87(2)(b) was retrieving his property, PO Healy approached him and issued him a summons § 87(2)(b).

Victim: § 87(2)(b)

- § 87(2)(b) *black male, § 87(2)(b), black hair, brown eyes.*

§ 87(2)(b) was interviewed near the CCRB on September 4, 2009 (encl. 7a-7d). § 87(2)(b)
§ 87(2)(b) § 87(2)(b) § 87(2)(b) § 87(2)(b) § 87(2)(b) § 87(2)(b) § 87(2)(b) § 87(2)(b)
§ 87(2)(b)

- Prior to the stop, § 87(2)(b) was sitting alone on the stoop of § 87(2)(b) where he played with a two-inch knife. He did not wave the knife in the air. § 87(2)(b) also had in his possession his cell phone, keys, and papers with telephone numbers. After closing the knife and placing it in his right front pocket, § 87(2)(b) walked to a corner store at the corner of § 87(2)(b) and § 87(2)(b) to purchase coffee and a cigarette. He was holding his cell phone.
- PO Kazlas additionally searched around § 87(2)(b) feet by stretching the top of his socks and looking inside. PO Kazlas asked § 87(2)(b) to undo the cuffs on his jeans; § 87(2)(b) complied (**Within Allegation D**). PO Kazlas recovered some papers with phone numbers and notes from § 87(2)(b) pocket.
- PO Kazlas asked § 87(2)(b) for his ID, and § 87(2)(b) said he did not have it in his possession. PO Kazlas also asked § 87(2)(b) if he lived in the area, and § 87(2)(b) replied in the affirmative. PO Kazlas said § 87(2)(b) needed to send someone to his residence to retrieve his ID, and § 87(2)(b) told him no one was home. PO Kazlas insisted that he needed to send someone to retrieve the ID. PO Kazlas grabbed § 87(2)(b) left bicep with his left hand and guided him across § 87(2)(b) to where § 87(2)(b) was with the other officers.

- Sgt. Worobey searched § 87(2)(b) the same way PO Kazlas had (**Within Allegation D**). Through this search, Sgt. Worobey recovered only the knife and some papers from § 87(2)(b) front right pocket and his keys.
- When asked, § 87(2)(b) and § 87(2)(b) provided their names.
- One of the officers conducted a warrant check under § 87(2)(b) name and told him he had a warrant under an open container violation.
- At some point, Sgt. Worobey said, ‘Everything’s gonna be alright. Namean? Namean?’ to § 87(2)(b) which § 87(2)(b) interpreted as mockery and racist, as Sgt. Worobey would not have spoken that way if § 87(2)(b) were white (**Allegation E**).
- PO Kazlas grabbed § 87(2)(b) arm as he had before, and Sgt. Worobey handcuffed § 87(2)(b).
- In the van, Sgt. Worobey explained that there had been a shootout in the area the previous night and told both § 87(2)(b) and § 87(2)(b) that they looked suspicious.
- At the stationhouse, § 87(2)(b) asked PO Kazlas for his name, but he did not provide it (**Allegation F**).

Witness: § 87(2)(b)

- § 87(2)(b) *black female*, § 87(2)(b), *black hair, brown eyes*.

§ 87(2)(b) was interviewed at the CCRB on October 28, 2009 (encl. 8a-8d). On August 18, 2009, at approximately 12:00 PM, § 87(2)(b) observed § 87(2)(b) and § 87(2)(b) walking together across the street from her residence. § 87(2)(b) was not sure if they had exited a building at § 87(2)(b) together, or if they met up outside. As they crossed § 87(2)(b) three officers approached them. § 87(2)(b) was not paying very close attention to the encounter. § 87(2)(b) said § 87(2)(b) did not spit; however, she was not watching him or § 87(2)(b) too closely or continuously from the moment he left § 87(2)(b) to the moment when the officers stopped him.

PO Kazlas approached and stopped § 87(2)(b) (**Allegation A**), and PO Healy and Sgt. Worobey approached and stopped § 87(2)(b) (**Allegation B**). PO Healy placed his hand in at least one of § 87(2)(b)'s back pockets (**Allegation C**) and § 87(2)(b) provided his ID. However, § 87(2)(b) could not say for certain what first occurred when the officers approached § 87(2)(b) and § 87(2)(b). As the officers were not “roughing up” either § 87(2)(b) or § 87(2)(b) she did not believe there was cause for concern and did not pay particular attention. She shortly entered her residence. When she exited several minutes later, the officers, § 87(2)(b) and § 87(2)(b) were no longer in the area.

Attempts to Contact Civilians

The investigator made numerous attempts to contact § 87(2)(b), whom § 87(2)(b) identified as a witness. § 87(2)(b) could not provide § 87(2)(b) contact information during the interview, and, citing concerns that § 87(2)(b) might not wish to participate in the investigation, he refused to provide it in the course of the investigation (encl. 9a-9b). When the investigator conducted field work, § 87(2)(b) refused to take the investigator to see § 87(2)(b) (encl. 26f). As such, the investigator provided § 87(2)(b) with business cards and instructed him to provide one to § 87(2)(b) and ask him to contact the investigator should he want to participate in the investigation. On September 24, 2009, the investigator conducted searches for § 87(2)(b) contact information, which yielded negative results, and left a voicemail message for three employees at the real estate company that owns the building where

§ 87(2)(b) works (encl. 26a-26j). As of the date of this report, § 87(2)(b) has not contacted the CCRB.

NYPD Statements:

Subject Officer: SGT. ERIK WOROBNEY

- § 87(2)(b) -old white male, § 87(2)(b), brown hair, blue eyes
- On August 19, 2009, from 1130-2027, Sgt. Worobey was assigned to a 79th Precinct Conditions Unit with PO Eric Healy (first bench) and PO Joseph Kazlas (front passenger) out of marked NYPD van number 5974. The officers were uniformed.

On October 27, 2009, Sgt. Erik Worobey was interviewed at the CCRB (encl. 11a-11c). On August 29, 2009, at approximately 12:20 PM, Sgt. Worobey, PO Healy, and PO Kazlas were driving in the vicinity of § 87(2)(b) and § 87(2)(b). They were assigned to patrol that location because a shooting had occurred there the previous night. Sgt. Worobey observed § 87(2)(b) carrying a large caliber rifle-type bullet in his hand. The bullet was slightly shorter than but about as thick as a pen with a bronze-yellow metal color. Subsequent investigation determined that this object was a knife, not a bullet. Sgt. Worobey also observed § 87(2)(b) spit on the sidewalk. Based on these observations, which occurred over a period of less than one minute, Sgt. Worobey decided to stop § 87(2)(b) and § 87(2)(b).

Sgt. Worobey was the first to make contact with them. Initially, Sgt. Worobey stated that he asked § 87(2)(b) and § 87(2)(b) for their IDs. Later, he stated that he first removed the ammunition-shaped knife from § 87(2)(b) while PO Kazlas parked their vehicle. After obtaining the IDs and removing the bullet from § 87(2)(b) person, Sgt. Worobey returned to the van and conducted warrant checks, while PO Healy and PO Kazlas remained standing near the van nearby § 87(2)(b).

Due to his military experience, PO Healy was familiar with the ammunition that § 87(2)(b) knife resembled; PO Healy eventually was the one who determined that it was a knife. PO Healy did not explain that it was a knife prior to the stop.

Initially, the officers intended to issue them summonses for their violations, but warrant checks yielded positive results: § 87(2)(b) had a warrant § 87(2)(b), and § 87(2)(b) had an open out-of-state warrant § 87(2)(b).

Pursuant to a lawful arrest, Sgt. Worobey at least partially frisked § 87(2)(b) and § 87(2)(b) on the scene before they entered the police van. The frisk revealed § 87(2)(b) cell phone, which the officers removed. Sgt. Worobey additionally searched them. Sgt. Worobey was not sure if PO Healy or PO Kazlas frisked or searched them. The stop lasted less than five minutes.

At the stationhouse, Sgt. Worobey made command log entries for the arrest. § 87(2)(b) knife was vouchered. § 87(2)(b) was detained at the stationhouse for twenty minutes, whereupon he was released with a summons § 87(2)(b).

Sgt. Worobey additionally clarified ambiguities re: § 87(2)(b)'s stop, question and frisk report: "Fits description" refers to the fact that § 87(2)(b) was walking next to § 87(2)(b).

who was holding what appeared to be a bullet. “Indicative of engaging in violent crimes” refers to the fact that § 87(2)(b) was walking with an individual carrying a bullet.

Sgt. Worobey did not refuse to provide his name to § 87(2)(b) nor did he overhear his partners do so; he noted that he was in uniform, and his name plate and shield were clearly displayed. Sgt. Worobey never said, ‘Everything’s gonna be alright. Namean? Namean?’ to § 87(2)(b) nor did his partners; he just explained to § 87(2)(b) that he was being arrested pursuant to a simple warrant. Neither Sgt. Worobey nor his partners made any racist remarks to § 87(2)(b).

Subject Officer: PO JOSEPH KAZLAS

- § 87(2)(b) white male, § 87(2)(b), brown hair, blue eyes

Witness Officer: PO ERIC HEALY

- § 87(2)(b) white male, § 87(2)(b), brown hair, hazel eyes

Stop, Question, and Frisk Reports

PO Healy prepared stop, question, and frisk reports for § 87(2)(b) and § 87(2)(b) (encl. 15a-15f). The reports indicate that § 87(2)(b) and § 87(2)(b) were stopped under suspicion of criminally possessing a weapon. Circumstances leading to § 87(2)(b)'s stop are listed as “fits description,” “actions indicative of engaging in violent crimes,” “walking with male holding bullet,” “report from victim/witness/officer,” “high incidence of reported offense [in area],” and “proximity to scene of suspected offense.” § 87(2)(b) was frisked because he was “suspected” of a “violent crime” and because of “actions indicative of engaging in violent crimes.” Circumstances leading to § 87(2)(b) stop were identical to § 87(2)(b)'s, with the following exceptions: “carry[ing] objects in plain view commonly used in commission of crimes,” “violent prone location,” and “ongoing investigation.” § 87(2)(b) was frisked for the same reasons § 87(2)(b) was. § 87(2)(b) was searched due to the presence of a “hard object,” which had the “outline of [a] weapon” (encl. 15a-15f).

Arrest Report

PO Healy prepared § 87(2)(b) arrest report, which alleges that he committed § 87(2)(b). The narrative reads: “AT TPO DEFT OBSERVED IN POSSESSION OF AN IMITATION BULLET THAT OPENS UP INTO A DISGUISED KNIFE WITH A TOTAL LENGTH MEASURING OVER 4 INCHES. WARRANT CHECK REVEALED THAT DEFT IS WANTED ON DOCKET #§ 87(2)(b) (encl. 16a-16b).

Property Voucher

PO Healy prepared property voucher § 87(2)(b) for one “yellow metal imitation bullet that converts in to a knife” (encl. 17a).

Summons

PO Healy issued § 87(2)(b) summons no. § 87(2)(b) § 87(2)(b)

CCRB Testimony

On October 21, 2009, PO Joseph Kazlas was interviewed at the CCRB (encl. 13a-13b). § 87(2)(g)

- When asked about the refusal to provide name allegation, PO Kazlas noted that, throughout the incident, he was right in front of both gentlemen in uniform, which would have given § 87(2)(b) plenty of time to observe their shields and name plates and/or ask for their names and shield numbers. Had either gentleman asked for said information, PO Kazlas asserted, he would have provided it. PO Kazlas also noted that PO Healy's name should be on a copy of the summons § 87(2)(b) received.

CCRB Testimony

On October 29, 2009, PO Eric Healy was interviewed at the CCRB (encl. 19a-19c). § 87(2)(g)

- Based on his military experience, PO Healy believed that § 87(2)(b) was carrying a bullet in his right hand. PO Healy described the object as five to six inches long, whose tip was dark brass and whose body was lighter brass. It resembled a 50 caliber artillery round, which PO Healy described as a "pretty big round." Subsequently, PO Healy noted that § 87(2)(b) placed this object in his right front pocket after noticing the officers. Additionally, when asked if anything else about his behavior indicated he was carrying a weapon, PO Healy stated that when § 87(2)(b) noticed the officers observing him, he pulled his cap over his face in such a way that obstructed the officers' view of his face and he began to walk away from § 87(2)(b).
- PO Healy approached § 87(2)(b) and requested his ID, and Sgt. Worobey approached § 87(2)(b).
- PO Healy frisked and searched § 87(2)(b) and § 87(2)(b). PO Healy could not say whether or not PO Kazlas or Sgt. Worobey frisked or searched either § 87(2)(b) or § 87(2)(b).

Summons & Arrest for Incident and Disposition

- On § 87(2)(b), a warrant was issued for § 87(2)(b).
- § 87(2)(b)

Status of Civil Proceedings

- As of December 10, 2009, neither § 87(2)(b) nor § 87(2)(b) has filed a Notice of Claim with the City of New York with regard to the incident (encl. 25a).

§ 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilians CCRB History

- This is the first CCRB complaint filed by either § 87(2)(b) or § 87(2)(b) (encl. 2a-2b).

Subject Officers CCRB History

- Sgt. Erik Worobey and PO Joseph Kazlas have been members of the service for six and three years, respectively, and there are no substantiated CCRB allegations against either of them (encl. 3a-3c).

Conclusion

Identification of Subject Officers

- The officers admitted to interacting with § 87(2)(b) and § 87(2)(b)
- Sgt. Worobey indicated that it was his decision to stop § 87(2)(b) and § 87(2)(b) § 87(2)(g).
- § 87(2)(b) description of the officer who stopped, searched, and refused to provide his name most closely resembles PO Kazlas. § 87(2)(g)
- § 87(2)(b) testified that the officer who spoke offensively to him was the officer who was one of two officers standing with § 87(2)(b) either PO Healy or Sgt. Worobey. The officer who supposedly made the comment was not the officer who searched § 87(2)(b) § 87(2)(g)

Investigative Findings and Recommendations

Allegation A – Abuse of Authority: Sgt. Erik Worobey stopped § 87(2)(b)

Allegation D – Abuse of Authority: Sgt. Erik Worobey searched § 87(2)(b)

§ 87(2)(b) indicated that he was in possession of a knife at the time of the incident. When asked to describe the knife, § 87(2)(b) depicted it as if it were a small knife that would be found in a toolbox. § 87(2)(b) did not mention that it resembled an artillery shell or ammunition of any type, and he asserted that he placed it in his pocket before he began walking to the store. § 87(2)(g)

§ 87(2)(b). PO Healy noted that once § 87(2)(b) appeared to notice the officers, he quickly tucked the object into a pocket and put his hand down so as to conceal his face. § 87(2)(g)

Criminal Procedure Law Section 140.10(1)(a) provides that an officer may arrest a person for “[a]ny offense when he has reasonable cause to believe that such person has committed such offense in his presence.” “ ‘Reasonable cause’ [...] exists when evidence or information which appears reliable discloses facts or circumstances which are collectively of such weight and persuasiveness as to convince a person of ordinary intelligence, judgment and experience that it is reasonably likely that such offense was committed and that such person committed it.” Criminal Procedure Law Section 70.10(2). Information provided by a fellow police officer can establish probable cause. *People v. Horowitz*, 21 N.Y.2d 55 (1967), cited in Kamis, *New York Search and*

Seizure, at 1-89. Pursuant to a lawful arrest, an officer may conduct a search, which must be evaluated by the standard of reasonableness. People v. Rivera, 14 N.Y.2d 441 (1964), cited in Kamins at 1-140 (all citations in paragraph: encl. 1a-1i).

§ 87(2)(g) [REDACTED]
[REDACTED] Penal Law Section 265.01(7), which indicates that “knowing[] possess[ion of] a bullet containing an explosive substance designed to detonate upon impact” constitutes fourth-degree criminal possession of a weapon, a class A misdemeanor (encl. 1a-1i). § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

Allegation B – Abuse of Authority: Sgt. Erik Worobey stopped § 87(2)(b) [REDACTED]

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

Spitting is a violation of New York City Health Code Article 181, Section 03 (encl. 1j). § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Allegation C – Abuse of Authority: Sgt. Erik Worobey searched § 87(2)(b) [REDACTED]

§ 87(2)(b) [REDACTED] alleges that he was searched prior to the officers requesting his ID and determining that he had an open warrant. § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED] § 87(2)(b) [REDACTED] corroborated that an officer placed a hand in § 87(2)(b) [REDACTED]’s pocket, but she could not definitively say when this occurred in the course of the interaction. Each officer indicated that § 87(2)(b) [REDACTED] was not searched until he was lawfully arrested. Further, each officer described § 87(2)(b) [REDACTED] as compliant throughout the encounter.

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

Allegation E – Offense Language: Sgt. Erik Worobey made remarks to § 87(2)(b) based upon race.

Allegation F – Abuse of Authority: PO Joseph Kazlas refused to provide his name to § 87(2)(b)

§ 87(2)(b) alleged that PO Kazlas refused to provide his name when asked and that Sgt. Worobey made racist remarks to him, whereas both PO Kazlas and Sgt. Worobey denied the charges. § 87(2)(g)

Team: _____

:

Investigator: _____	_____	_____
Signature	Print	Date

Supervisor: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date